

24TRCV02086 24TRCV02086

County: los-angeles

Division: Civil Law and Motion

Department: 5

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Case Number: 24TRCV02086 Hearing Date: July 28, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

KAMRAN HARSINI

;

Plaintiff,

vs.

THE HILL COMMUNITY
ASSOCIATION

, et al.;

Defendants.

Case

No.:

24TRCV02086

Hearing

Date:

July
28, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

PLAINTIFF

KAMRAN HARSINI'S MOTION FOR ORDER OF CONTEMPT AGAINST DEFENDANT THE HILL
ASSOCIATION

(2)

PLAINTIFF

KAMRAN HARSINI'S REQUEST TO IMPOSE A \$1,000 FINE

(3)

PLAINTIFF

KAMRAN HARSINI'S REQUEST FOR ATTORNEY'S FEES

MOVING PARTY: Plaintiff, Kamran Harsini

RESPONDING

PARTY: Defendant, the Hill Community
Association

(1)

Plaintiff

Kamran Harsini's Motion for Order of Contempt Against Defendant the Hill
Community Association is DENIED pursuant to Code of Civil Procedure section 1005,
subdivision (b).

(2)

Plaintiff

Kamran Harsini's Request to Impose a \$1,000 Fine is DENIED pursuant to Code of Civil Procedure section

1005, subdivision (b).

(3)

Plaintiff

Kamran Harsini's Request for Attorney's Fees is DENIED pursuant to Code of Civil Procedure section 1005, subdivision (b).

The Court considers the moving papers filed on July 6, 2026, the opposition brief filed on July 22, 2026, and the reply brief filed on July 22, 2026.

BACKGROUND

Factual

Background

On June 21, 2024, plaintiff Kamran Harsini, trustee of the Masoumeh Ziaee Harsini Trust Dated April 27, 2004 ("Plaintiff") filed a Complaint against defendants the Hill Community Association, Classic Property Management, Inc. ("Hill"), Steve Waltzman, Michael Hagerthy, Hitochi Morimoto, Cyndi Puerto, and DOES 1 through 100. On October 16, 2024, Plaintiff filed a First Amended Complaint ("FAC"). On December 20, 2024, Plaintiff filed a Second Amended Complaint ("SAC"). The SAC alleges the following causes of action: (1) Breach of Contract; (2) Breach of Fiduciary Duty; (3) Gross Negligence and Willful Misconduct; (4) Nuisance; (5) Infringement of Rights of Others; (6) Fraud; (7) Failure to Respond to Written Request for Records; (8) Failure to Maintain Common Areas; (9) Trespass; (10) Conspiracy; (11) Injunctive Relief; and (12) Attorneys' Fees and Costs.

On December 1, 2025, the Court granted Plaintiff's Motion to Compel Further Discovery Responses to Requests for Documents, Set One. (December 1, 2025 Minute Order, p. 6.) The Court ordered Hill to provide Plaintiff with verified responses that comply with the code by January 15, 2026. (December 1, 2025 Minute Order, p. 6; Declaration of Virginia Marsh ("Marsh Decl."), ¶ 3.) Additionally, the Court ordered Hill to pay a monetary sanction of \$900.00 by the same date, January 15, 2026. (December 1, 2025 Minute Order, p. 6; Marsh Decl., ¶ 3.)

On May 21, 2026, the Court denied Hill's Motion to Vacate and Set Aside Order Granting Plaintiff Kamran Harsini's Motion to Compel Further Discovery Responses and Award of Sanctions. (May

21, 2026 Minute Order, pp. 4-5; Marsh Decl., ¶ 4.) Hill was ordered to provide the responses and pay sanctions by June 22, 2026. (Marsh Decl., ¶ 4.) Hill's counsel was present at the hearing. (Marsh Decl., ¶ 4.)

Although Hill allegedly mailed the check on June 30, 2026, Plaintiff has not received the check as of the date of filing. (Marsh Decl., ¶ 5.)

LEGAL STANDARDS

Contempt is any act, in or out of court, "which tends to impede, embarrass or obstruct the court in the discharge of its duties." (In re Shortridge (1893) 99 Cal. 526, 532.) Particular acts constituting contempt are enumerated by statute, including: "(d)isobedience of any lawful ... order, or process of the court"; "(d)isobedience of a subpoena duly served"; "refusing to ... answer as a witness"; "(d)isorderly, contemptuous, or insolent behavior toward the judge while holding the court, tending to interrupt the due course of ... trial." (Code Civ. Proc., § 1209, subd. (a); see Code Civ. Proc., § 1991 [disobedience of subpoena]; see also Pen. Code, § 166 [misdemeanor].) In addition, courts have inherent power to punish acts that interfere with the orderly conduct of proceedings. (Code Civ. Proc., § 128, subd. (a)(3); In re Buckley (1973) 10 Cal.3d 237, 247.) Any person who commits a contemptuous act may be punished for contempt, which includes attorneys and parties. (Hallinan v. Superior Court in and for Kings County (1925) 74 Cal.App. 420, 426 [persisting in arguing objections after repeated warnings by the judge]; Hanson v. Superior Court (2001) 91 Cal.App.4th 75, 84-85 [attorney misconduct during closing argument]; In re Coleman (1974) 12 Cal.3d 568, 573 [labor union violated temporary restraining order].)

When the contempt at issue is "indirect," a more elaborate procedure is followed to notify the person(s) sought to be charged and allow them an opportunity to be heard. (Code Civ. Proc., §§ 1211–1218; see also Hanson v. Superior Court, supra, 91 Cal.App.4th at p. 81.) "An affidavit must be presented to the court stating the facts constituting the contempt, an order to show cause must be

issued, and hearing on the facts must be held by the judge.” (Arthur v. Superior Court of Los Angeles County (1965) 62 Cal.2d 404, 407-408.) Since the acts involved did not occur in the court's presence, the affidavit must cover each element of the commission of the contempt. (Code Civ. Proc., § 1211.5.) This affidavit serves as the “complaint” in an indirect contempt proceeding and must contain factual allegations based on firsthand knowledge. (Lyon v. Superior Court of Los Angeles County (1968) 68 Cal.2d 446, 452 (Lyon).)

In indirect contempt proceedings based on disobedience of a prior court order, a valid judgment must meet “strict requirements.” Each of the following must be established: (1) the rendition of a valid court order; (2) actual knowledge of the order; (3) ability to comply; and (4) willful disobedience of the order. (Conn v. Superior Court (1987) 196 Cal.App.3d 774, 784 [repeated failures to turn over documents as ordered].) Upon receipt of the affidavit, the court usually issues an order to show cause (“OSC”) why the person should not be held in contempt. (Code Civ. Proc., § 1212.)

Although not required, the alleged contemnor may respond to the affidavit and OSC by counter-affidavits. These affidavits serve as the “answer” to the charging allegations in the original affidavit. (Lyon, supra, 68 Cal.2d at p. 452.) However, such affidavits are not mandatory. The alleged contemnor may assert their defenses entirely at the hearing. (Code Civ. Proc., § 1217.)

“Upon the answer and evidence taken, the court or judge shall determine whether the person proceeded against is guilty of the contempt charged, and if it be adjudged that the person is guilty of the contempt, a fine may be imposed on the person not exceeding one thousand dollars (\$1,000), payable to the court, or the person may be imprisoned not exceeding five days, or both. In addition, a person who is subject to a court order as a party to the action, or any agent of this person, who is adjudged guilty of contempt for violating that court order may be ordered to pay to the party initiating the contempt proceeding the reasonable attorney's fees and costs incurred by this party in connection with the contempt proceeding.” (Code Civ. Proc., § 1218,

subd. (a).)

DISCUSSION

“[A]ll moving and supporting papers shall be served and filed at least 16 court days before the hearing. The moving and supporting papers served shall be a copy of the papers filed or to be filed with the court. However, if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by five calendar days if the place of mailing and the place of address are within the State of California, 10 calendar days if either the place of mailing or the place of address is outside the State of California but within the United States, 12 calendar days if the place of address is the Secretary of State's address confidentiality program (Chapter 3.1 (commencing with Section 6205) of Division 7 of Title 1 of the Government Code), and 20 calendar days if either the place of mailing or the place of address is outside the United States, and if the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 16-day period of notice before the hearing shall be increased by two calendar days.” (Code Civ. Proc., § 1005, subd. (b).)

A review of the Court's docket reveals that Plaintiff filed the motion on July 6, 2026. Given that the motion is scheduled for a hearing on July 28, 2026, Plaintiff was required to file and serve the motion by July 6, 2026, if it was to be served personally. However, because Plaintiff chose to serve the motion by mail, the deadline for service was July 1, 2026. Consequently, Plaintiff's motion is deemed untimely.

Accordingly, the Plaintiff's motion and the associated requests is DENIED.

ORDERS

1) Plaintiff
Kamran Harsini's Motion for Order of Contempt Against Defendant the Hill Community Association is DENIED.

2) Plaintiff
Kamran Harsini's Request to Impose a \$1,000 Fine is DENIED.

3) Plaintiff
Kamran Harsini's Request for Attorney's Fees is DENIED.

4) Plaintiff

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: July 28, 2026

Tamara

Hall

Judge

of the Superior Court